[Public Land Order 1732]

[Fairbanks 014424]

ALASKA

RESERVING LANDS AT NORTHWAY JUNCTION FOR USE OF BUREAU OF LAND MANAGEMENT AS AN ADMINISTRATIVE SITE; PARTIALLY REVOKING PUBLIC LAND ORDER NO. 386 OF JULY 31, 1947

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation, including the mining but not the mineral-leasing laws, nor disposals under the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604) as amended, and reserved for use of the Bureau of Land Management, Department of the Interior, as an administrative site:

NORTHWAY JUNCTION

A parcel of land situated on the southerly side of the Alaska Highway and easterly side of the Northway Road in the immediate vicinity of their junction at approximate latitude 63°00'54" N., longitude 141°47'00" W., more particularly described as follows:

Beginning at a point identical to Corner No. 4, of U. S. Survey No. 2781; thence

N. 54°57' W., 1.50 chains to a point on the centerline of Northway Road;
N. 33°03' E., 15.57 chains along said centerline to a point on the centerline of the Alaska Highway;
S. 54°57' E., 10.00 chains along said centerline;
S. 35°03' W., 15.57 chains;
N. 54°57' W., 3.40 chains to Corner No. 3 of U. S. Survey No. 2781;
N. 54°57' W., 5.10 chains along Line 3–4 of U. S. Survey No. 2781 to the point of beginning.

The tract described contains 15.57 acres.

2. Public Land Order No. 386 of July 31, 1947, is hereby revoked so far as it affects any of the lands described in paragraph 1 of this order.

FRED G. AANDAHL,
Acting Secretary of the Interior.

SEPTEMBER 17, 1958.

[F. R. Doc. 58-7725; Filed, Sept. 22, 1958; 8:45 a. m.]

[Public Land Order 1733]

[716554]

MICHIGAN

REVOKING EXECUTIVE ORDER NO. 2638 OF JUNE 12, 1917, WHICH RESERVED LITTLE LIME ISLAND FOR LIGHTHOUSE PURPOSES

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 2638 of June 12, 1917, which reserved the following-described public lands in Michigan for lighthouse purposes, is hereby revoked:

MICHIGAN MERIDIAN

T. 42 N., R. 6 E.,
Sec. 6, Little Lime Island, Unsurveyed.

The island is located in the Straits of St. Mary, South of Lime Island, and is estimated to contain approximately 13 acres.

2. The lands will not be open to further disposition under the public land laws, unless and until, after survey, a notice is issued by an authorized officer of the Bureau of Land Management, of the filing of an official plat of survey, which notice shall specify the time and manner for filing of applications.

FRED G. AANDAHL,
Acting Secretary of the Interior.

SEPTEMBER 17, 1958.

[F. R. Doc. 58-7726; Filed, Sept. 22, 1958; 8:46 a. m.]

[Public Land Order 1734]

[77731]

WASHINGTON

POWER SITE RESTORATION NO. 537; PARTLY REVOKING EXECUTIVE ORDERS OF JULY 2, 1910 AND JUNE 30, 1916, WHICH CREATED POWER SITE RESERVES NOS. 74 AND 534, RESPECTIVELY; OPENING CERTAIN LANDS WITHIN OTHER EXISTING POWER WITHDRAWALS

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive Orders of July 2, 1910 and June 30, 1916, creating Power Site Reserves No. 74 and No. 534, respectively, are hereby revoked, so far as they affect the following-described lands:

WILLAMETTE MERIDIAN

POWER SITE RESERVE NO. 74

T. 7 N., R. 5 E.,
Sec. 30, lot 9.
T. 7 N., R. 6 E.,
Sec. 23, NE¼ and NE¼SE¼.

POWER SITE RESERVE NO. 534

T. 33 N., R. 10 E.,
Sec. 4, lots 6, 7, E½SW¼, and W½SE¼;
Sec. 9, SW¼SW¼;
Sec. 10, lot 9.

The areas described aggregate 550 acres.

2. An order of the Director of the Geological Survey of November 19, 1957 (22 F. R. 9437), cancelled Power Site Classifications Nos. 75, 126, 156, and 207, so far as they affect the following-described lands:

WILLAMETTE MERIDIAN

T. 37 N., R. 5 E.,
Sec. 21, lots 2 and 7.
T. 40 N., R. 6 E.,
Sec. 28.
T. 3 N., R. 7 E.,
Sec. 1, lot 2.
T. 12 N., R. 8 E.,
Sec. 10, N½SE¼.
T. 33 N., R. 10 E.,
Sec. 20, lot 9;
Sec. 22, lot 2.

Totalling 195 acres.

3. In DA–134–Washington, issued June 8, 1956, the Federal Power Commission vacated the existing power withdrawal created by the filing of an application for preliminary permit on November 14, 1921, for Power Project No. 264, affecting the following-described lands:

WILLAMETTE MERIDIAN

T. 7 N., R. 5 E.,
Sec. 30, lots 1, 2, 9, NW¼NE¼, and NE¼NW¼.
T. 7 N., R. 6 E.,
Sec. 23, NE¼ and NE¼SE¼.

The areas described aggregate 389.92 acres.

4. In DA–134–Washington, the Federal Power Commission made a favorable determination under section 24 of the Federal Power Act respecting the following-described lands:

WILLAMETTE MERIDIAN

POWER PROJECTS NOS. 2071 AND 2111

T. 7 N., R. 4 E.,
Sec. 34, E½SE¼.
T. 7 N., R. 5 E.,
Sec. 26, lot 7.
T. 7 N., R. 6 E.,
Sec. 26, lots 4, 7, and 8.

The areas described aggregate 228.65 acres.

5. The lands described in this order are timber lands lying in western Washington. Topography for the most part is rough and mountainous, and the soil is a shallow, rocky clay loam.

6. No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

7. Subject to any valid existing rights, and the requirements of applicable law, the lands described in this order are hereby opened to filing of applications, selections and locations, in accordance with the following, the lands described in paragraph 4, however, being opened subject to the provisions of section 24 of the Federal Power Act, and subject to the prior right of the United States, its licensees or permittees, to use for power purposes those portions of the lands within the project boundary of Project No. 2071, as shown on map designated Exhibit "K"–7 (Federal Power Commission No. 2071–28), and the project boundary of Project No. 2111, as shown on the map designated Exhibit "K" (Federal Power Commission No. 2111–12) and both filed in the Office of the Federal Power Commission:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in

support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284, as amended), presented prior to 10:00 a. m. on October 23, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on January 22, 1959, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on January 22, 1959, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

8. The lands have been open to applications and offers under the mineral leasing laws, and, excepting those described in paragraph 4, which are within the boundaries of licensed Project No. 2071 and proposed Project No. 2111, to location under the United States mining laws pursuant to the act of August 11, 1955 (69 Stat. 682; 30 U. S. C. 621, et seq.).

9. All the lands described in this order shall be subject until 10:00 a. m. on December 18, 1958, to application by the State of Washington under any statute or regulation applicable thereto, for rights-of-way for public highways, or as a source of material for the construction and maintenance of such highways, pursuant to section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818) as amended.

10. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

FRED G. AANDAHL,
Acting Secretary of the Interior.

SEPTEMBER 17, 1958.

[F. R. Doc. 58-7727; Filed, Sept. 22, 1958; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Bureau of Customs

[19 CFR Part 24]

TYDEN AND AUTOMATIC METAL SEALS

NOTICE OF PROPOSED INCREASE IN PRICE

Notice is hereby given pursuant to section 4 of the Administrative Procedure Act (5 U. S. C. 1003), that, under the authority of title V, section 501 of the Act of August 31, 1951 (5 U. S. C. 140), it is proposed to amend § 24.13 (e) of the Customs Regulations to increase the charge for in-bond and in-transit seals sold by collectors of customs.

The purpose of the proposed amendment is to recover the cost to customs, including the contract purchase price, shipping costs, storage, distribution, sale, accounting, and other overhead costs covering Tyden and automatic metal seals issued and sold by collectors of customs for emergency use by common carriers and other authorized users of such seals, the price to be paid to collectors of customs to be increased from 5 cents to 10 cents per seal, with a minimum order to consist of 10 seals for $1. The terms of the proposed amendment, in tentative form, are as follows:

The last sentence of paragraph (e) of § 24.13, is amended to read as follows: "In-bound and in-transit seals sold by collectors of customs shall be charged for at the rate of 10 cents per seal, with a minimum order to consist of 10 seals for $1."

Prior to the final adoption of such amendment, consideration will be given to any relevant data, views, or arguments pertaining thereto which are submitted in writing to the Commissioner of Customs, Bureau of Customs, Washington 25, D. C., and received not later than 20 days from the date of publication of this notice in the FEDERAL REGISTER. No hearing will be held.

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

Approved: September 16, 1958.

A. GILMORE FLUES,
Acting Secretary of the Treasury.

[F. R. Doc. 58-7750; Filed, Sept. 22, 1958; 8:50 a. m.]

POST OFFICE DEPARTMENT

[39 CFR Part 15]

MATTER MAILABLE UNDER SPECIAL RULES

CONCEALABLE FIREARMS

Section 1715 of Title 18, United States Code, declares pistols, revolvers, and other firearms capable of being concealed on the person, to be nonmailable, with exceptions in favor of bona fide dealers in firearms, manufacturers, officers of the Armed Forces, and other persons. The law gives authority to the Postmaster General to prescribe regulations governing permissible shipments of firearms. The Departmental regulations are contained in § 15.5 of Title 39, Code of Federal Regulations.

Various chief legal officers of the Department have taken the view that it would frustrate the legislative intent of the law to hold a pistol to be mailable solely because it uses a propellent other than gunpowder. In the Postal Bulletin of June 12, 1951, and again in the Postal Bulletin of February 23, 1954, the chief legal officer of the Department caused to be published instructions to the effect that gas and air pistols are within the purview of the law in 18 U. S. C. 1715.

It is proposed to amend the regulations contained in § 15.5 of Title 39, Code of Federal Regulations, to bring such interpretive rulings within the scope of the regulations by making them applicable to gas, air, and spring-action pistols.

The proposed amendment relates to a proprietary function of the Government. It also is in a nature of an interpretive ruling. Accordingly, this amendment is exempted from the rule making requirements of the Administrative Procedure Act (5 U. S. C. 1003). However, the Postmaster General desires voluntarily to give postal patrons an opportunity to present their written views concerning the proposed regulations. Accordingly, the final regulations to be adopted by the Department will be considered in the light of such views which may be received.

Comments may be submitted to Richard S. Farr, Acting Assistant General Counsel, Room 5226, Post Office Department, Washington 25, D. C., at any time prior to November 1, 1958.

The proposed amendment is as follows:

In Part 15—Matter Mailable Under Special Rules, amend § 15.5 *Concealable firearms* by the addition of a new paragraph (h) to read as follows:

(h) *Gas, air, spring-action pistols.* Gas and air pistols, as well as those which operate solely by a spring action, are regarded as firearms and their mailing must comply with the requirements of this section.

NOTE: The corresponding Postal Manual section is 125.5.

(R. S. 161, as amended, 396, as amended, sec. 1, 62 Stat. 781, as amended; 5 U. S. C. 22, 369, 18 U. S. C. 1715)

[SEAL] HERBERT B. WARBURTON,
General Counsel.

[F. R. Doc. 58-7776; Filed, Sept. 22, 1958; 8:55 a. m.]